

25STCV35426 25STCV35426

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-06-25

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Case Number: 25STCV35426 Hearing Date: June 25, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 3:23 PM on June 22, 2026.

Notice

of intent to appear is REQUIRED pursuant to California Rule of Court

3.1308(a)(1). The Court does not desire

oral argument on the motion addressed herein.

As

required by Rule 3.1308(a)(1), any party seeking oral argument must notify ALL

OTHER PARTIES and the staff of Department 734 by 4:00 p.m. on June 24, 2026.

Notice to Department 734 should be sent by

email to , with opposing parties copied on the email. The high volume of telephone calls to

Department 734 may delay the Court's receipt of notice, so telephonic notice to

213-830-0776 should be reserved for situations where parties are unable to give

notice by email.

Per

Rule of Court 3.1308, the Court may not entertain oral argument if notice of intention to appear is not given.

Plaintiff

alleges that he was not paid in full for construction work.

Defendant

Mervin G. Dungca moves to set aside the entry of default.

TENTATIVE RULING

Defendant

Mervin G. Dungca's motion to set aside the entry of default is placed OFF-CALENDAR

AS MOOT. Not only did Defendant fail to file a proof of service regarding notice of this motion, but Defendant's default has not yet been entered.